

Mithlesh Valmiki v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 20 September 2023 · 2023:AHC:181791-DB · Writ - C No. 26636 of 2023 · **Disposed by consent; petitioner may apply under clause 6.14**

HEADNOTE

A writ for an electricity connection and a no-dues certificate, filed after part payment of a quantified assessment, was disposed of by consent. If inclined to clear the balance, the petitioner may take recourse under the U.P. Electricity Supply Code, 2005, including an application under Clause 6.14. The assessment, the connection, and the Section 127 objection were not decided.

FACTUAL SUMMARY

Mithlesh Valmiki sought a mandamus for an electricity connection and a no-dues certificate, relying on her husband's payment receipt of 20 July 2022. The Executive Engineer, Electricity Urban Distribution Division-III, Moradabad, had assessed the premises on 19 July 2022. She deposited Rs 2,91,552 the next day; Rs 6,34,774 remained. The licensee said that deposit accepted the assessment, that Section 127 of the Electricity Act, 2003 was open, and that clearance of the balance could be sought under Clause 6.14 of the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

recourse under clause 6.14 to clear assessed balance

HOLDING

On the petitioner's statement seeking leave to move the competent authority under Clause 6.14 of the U.P. Electricity Supply Code, 2005, and with the consent of the parties, the writ was disposed of. If the petitioner is inclined to clear the outstanding balance of the assessment dated 19 July 2022, recourse may be taken under the Code. The Court did not direct a connection, a no-dues certificate, or consideration of any instalment request. ¶ 4-6

PRINCIPLE TAGS

installment-payment-clause-6.14 Faced with a balance of Rs 6,34,774 after part payment of a quantified assessment, the petitioner sought leave to apply under Clause 6.14. The writ for a connection and a no-dues certificate was disposed of by consent, leaving the petitioner to that Code recourse if inclined to clear the dues. No instalment was granted. ¶ 4-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ASSESSMENT DATED 19 JULY 2022 WAS VALID, AND WHETHER A CONNECTION OR NO-DUES CERTIFICATE SHOULD ISSUE

The petition was disposed by consent without a finding on the assessment or on the licensee's plea that part payment accepted it. ¶ 5-6

NOT DECIDED — WHETHER THE WRIT WAS BARRED BY THE REMEDY UNDER SECTION 127 OF THE ELECTRICITY ACT, 2003

The licensee raised the objection. The Court did not rule on it. ¶ 3

